

25STCP03788 25STCP03788

County: los-angeles

Division: Civil Law and Motion

Department: 513

Hearing date: 2026-08-20

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Case Number: 25STCP03788 Hearing Date: August 20, 2026 Dept: 513

Superior

Court of California

County

of Los Angeles – Central District

Department 513

Vertical Construction, Inc.

;

Petitioner,

vs.

Illa Canna, LLC

;

Respondent.

Case No.:

25STCP03788

Hearing Date:

August 20, 2026

Time:

10:00 a.m.

[Tentative] Order RE:

(1) Petition
to Confirm Arbitration Award

(2) Petition
to Vacate Arbitration Award

MOVING PARTY: Vertical Construction, Inc.

RESPONDING
PARTY: Illa
Canna, LLC

(1) Petition
to Confirm Arbitration Award

MOVING PARTY: Illa Canna, LLC

RESPONDING
PARTY: No response.

(2) Petition
to Vacate Arbitration Award

The court considered the moving,
opposition, and reply papers filed in connection with the petition to confirm
arbitration award. The court also considered the moving papers filed in
connection with the petition to vacate arbitration award. No response to that
petition was filed.

DISCUSSION

Petition to Confirm Arbitration

Award

Petitioner

Vertical Construction, Inc. ("Petitioner") petitions the court for an order confirming an arbitration award made in favor of Petitioner, and against respondent Illa Canna, LLC ("Respondent"), on August 8, 2025.

"Any party to an

arbitration in which an award has been made may petition the court to confirm, correct or vacate the award. The petition shall name as

respondents all parties to the arbitration and may name as respondents any

other persons bound by the arbitration award." (Code Civ. Proc., § 1285.) "A petition under this chapter

shall: (a) Set forth the substance of

or have attached a copy of the agreement to arbitrate unless the petitioner

denies the existence of such an agreement. (b) Set forth the names of the arbitrators.

(c) Set forth or have attached a copy of the award and the written opinion of

the arbitrators, if any." (Code Civ. Proc., § 1285.4.) "If a petition or response under this chapter is duly served and filed, the court shall confirm the award as

made, whether rendered in this state or another state, unless in accordance with this chapter it corrects the award and confirms it as corrected, vacates

the award or dismisses the proceeding." (Code Civ. Proc., § 1286.) Any response to the petition is required to be filed and served within 10 days after

service of the petition.

(Code Civ. Proc., § 1290.6.) The

court finds that Petitioner has (1) set forth the contract that required

the parties to arbitrate, (2) set forth the name of the arbitrator (Jane

G. Kearl), and (3) attached a copy of the arbitration

award. (Pet. to Confirm, ¶¶ 4, subds. (c), (6) and Attachments 4(c)

and 8(c).)

Respondent

opposes the petition and separately seeks to vacate the award on the grounds

that (1) the award was procured by fraud or unfair means; (2) the arbitrator

exceeded her powers; and (3) the arbitrator refused to hear material evidence.

(Code Civ. Proc., § 1286.2, subd. (a)(1), (4), (5).)

First, the court finds

that Respondent did not meet its burden to demonstrate that the award was

procured by fraud or unfair means. Respondent cites no evidence establishing

that Petitioner's claimed damages were barred by the terms of the parties' contract. Nor does Respondent cite any evidence showing that Petitioner's evidence of damages were "fabricated." Further, Respondent has not shown that the arbitrator excluded any impeachment evidence from consideration. The absence of any discussion in the Final Award is not proof of what the arbitrator did or did not consider.

Second, as stated

above, Respondent has not shown that the arbitrator improperly excluded any evidence, because the absence of discussion in the Final Award is not proof of what evidence the arbitrator admitted.

Third, the court

finds that Respondent did not meet its burden to demonstrate that the arbitrator exceeded her powers, because Respondent does not cite any contractual terms which restricted the arbitrator's power to award damages. Generalized argument is not evidence.

For the reasons set

forth above, the court grants the petition to confirm the arbitration award.

Petition to Vacate Arbitration

Award

Respondent

petitions the court for an order vacating the arbitration award for the reasons stated in Respondent's opposition to the petition to confirm.

The court finds that Respondent

has not met its burden to establish any grounds to vacate the arbitration award. (Petition to Vacate Contractual Arbitration Award, filed November 13, 2025, ¶ 10.c(1).)

For the reasons

stated above, the court denies the petition to vacate the arbitration award.

ORDER

The court GRANTS Vertical

Construction, Inc.'s petition to confirm contractual arbitration award.

The court DENIES Illa
Canna, LLC's petition to vacate arbitration award.

The court orders
that the arbitration award, dated August 8, 2025 (attached as Exhibit 8(c) to
Vertical Construction, Inc.'s petition to confirm contractual arbitration award),
is confirmed and judgment shall be entered in conformity with that award (in favor
of Vertical Construction, Inc., and against Illa Canna, LLC, for \$653,284.60 in
damages plus interest from February 15, 2024 at the legal rate, \$178,919.04 in attorney's
fees, and \$20,050 in costs).

The court orders
petitioner Vertical Construction, Inc. to prepare, serve, and file with the
court a proposed judgment within 10 days of the date of this order.

The court sets an
Order to Show Cause re: entry of judgment on October 22, 2026, at 8:30 a.m., in
Department 513.

The court orders petitioner
Vertical Construction, Inc. to give notice of this ruling.

IT IS SO ORDERED.

DATED: August 20, 2026

Robert B. Broadbelt III

Judge of the Superior Court